

22STCV29636 22STCV29636

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-25

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Case Number: 22STCV29636 Hearing Date: June 25, 2026 Dept: 617

Dept.

617

Date:

6-25-26

Case

#: 22STCV29636 consolidated with 22STCV30079

Trial

Date: 7-6-26 (equitable issues); 12-21-26 (legal issues)

MOTION IN LIMINE

MOVING

PARTY: Flyer Next, LLC, Oded Nechushtan, and Amit Nechushtan

RESPONDING

PARTY: Marvin Engineering Co., Inc.

RELIEF

REQUESTED

Motion

in Limine No. 1

SUMMARY

OF ACTION

Oded

Nechushtan and Amit Nechushtan are the founders of Flyer Technologies, LLC. In 2000, Flyer Technologies entered into a joint venture agreement with Marvin Engineering Co., Inc. for a project involving the development and sale of lightweight tactical all-terrain vehicles to the United States Marine Corps. As part of the joint venture, Flyer Technologies licensed its intellectual property for the manufacture of Flyer vehicles to Marvin and transferred its subsidiary to become a wholly owned Marvin subsidiary named Flyer Defense. Marvin and Flyer Technologies had equal voting power and an equal 50-50 split of royalties from the operation of Flyer Defense.

After

the head of Marvin became less involved due to health issues, the parties entered into a new agreement in 2018 to restructure the Flyer business. Flyer Defense was transferred from Marvin to a new limited liability company, Flyer Next, LLC, which was jointly and equally owned by Marvin and Flyer Technologies. Marvin was to contribute, assign, and transfer to Flyer Next all the intellectual property and other property rights that existed at the time with respect to the Flyer business. While the parties retained the 50-50 economic structure between Marvin and Flyer Technologies, the Limited Liability Company Agreement for Flyer Next designated Oded as Manager and gave him “the sole power to manage the business, property, and affairs of Flyer Next and its wholly owned subsidiary, Flyer Defense.” Flyer Technologies also agreed to give Marvin an \$18 million “priority return” over Flyer Technologies upon the occurrence of “specified liquidity events.”

On

May 17, 2023, Plaintiffs Flyer Defense, Flyer Next, and Flyer Technologies filed a Second Amended Complaint against Defendants Marvin and its President and Chief Operating Officer, David Gussman, as well as its Chief Executive Officer, Howard Gussman. Following voluntary dismissal of certain claims, the remaining causes of action are for declaratory relief, breach of the Contribution and Assignment Agreement, breach of the Services Agreement, breach of the Line of Credit Agreement, fraudulent misrepresentation, trespass to chattels, conversion, and unauthorized access to computers. Plaintiffs allege that while negotiating the 2018 restructuring, Flyer Technologies relied on Marvin’s misrepresentations of material facts in providing it 50% ownership of Flyer Next and a priority return of \$18 million if Flyer Next is ever sold for \$100 million or more. Plaintiffs further allege breaches of different

agreements and a controversy as to distributions.

On

May 24, 2023, the Court consolidated the case with related Case No. 22STCV30079, with the instant case as the lead case.

RULING: Granted.

Flyer

Next, LLC, Oded Nechushtan, and Amit Nechushtan (Flyer Parties) move for an order excluding any argument regarding, reference to, or evidence concerning the bonus allegedly paid to Oded and Amit in 2023. They argue that such evidence is not relevant because Marvin's complaint (filed in the related case) does not contain any allegations related to the 2023 bonus. They contend that introduction of the bonus would prejudicially expand the scope of the case and lead to substantial danger of conflating issues related to the 2021 and 2023 bonuses. The Flyer Parties also contend that any dispute relating to the 2023 bonus is subject to arbitration. Marvin opposes the motion, arguing that the 2023 bonus is relevant because its breach of fiduciary duty claim encompasses the bonus even though it occurred after the complaint was filed. Marvin additionally contests the applicability of the arbitration agreement and the propriety of the Flyer Parties' attempt to use it to exclude evidence. The Flyer Parties' motion is granted.

Marvin

is precluded from introducing evidence or argument or referencing the 2023 bonus. The bonus was not put in issue in its complaint. "One of the functions of pleadings is to limit the issues and narrow the proofs." (Fuentes v. Tucker (1947) 31 Cal.2d 1, 4.) "Evidence which is not pertinent to the issues raised by the pleadings is immaterial, and it is error to allow the introduction of such evidence." (Id. at p. 4.) Even in equity, post-filing facts are permitted if they "bear as evidence upon the facts in issue in the original cause." (Collins v. Sargent (1928) 89 Cal.App. 107, 112-13.) The 2023 bonus involves a separate bonus approved by a board, of which Flyer Parties represent Amit was no longer a member of, consisting of at least 3 new board members. [Ashley Suppl. Reply Decl. ¶ 14.] These differences indicate that the 2023 bonus does not bear upon the complaint's allegations of prior use of power over Flyer Next to give excessive bonuses. The Flyer Parties' motion is thus granted.

The

Court declines to use the instant motion as a vehicle to decide the merits of the pending motion to compel arbitration.

Moving

parties to give notice.

Dept.

617

Date:

6-25-26

Case

#: 22STCV29636 consolidated with 22STCV30079

Trial

Date: 7-6-26 (equitable issues); 12-21-26 (legal issues)

MOTION IN LIMINE

MOVING

PARTY: Flyer Next, LLC, Oded Nechushtan, and Amit Nechushtan

RESPONDING

PARTY: Marvin Engineering Co., Inc.

RELIEF

REQUESTED

Motion

in Limine No. 2

SUMMARY

OF ACTION

Oded

Nechushtan and Amit Nechushtan are the founders of Flyer Technologies, LLC. In 2000, Flyer Technologies entered into a joint venture agreement with Marvin Engineering Co., Inc. for a project involving the development and sale of

lightweight tactical all-terrain vehicles to the United States Marine Corps. As part of the joint venture, Flyer Technologies licensed its intellectual property for the manufacture of Flyer vehicles to Marvin and transferred its subsidiary to become a wholly owned Marvin subsidiary named Flyer Defense. Marvin and Flyer Technologies had equal voting power and an equal 50-50 split of royalties from the operation of Flyer Defense.

After

the head of Marvin became less involved due to health issues, the parties entered into a new agreement in 2018 to restructure the Flyer business. Flyer Defense was transferred from Marvin to a new limited liability company, Flyer Next, LLC, which was jointly and equally owned by Marvin and Flyer Technologies. Marvin was to contribute, assign, and transfer to Flyer Next all the intellectual property and other property rights that existed at the time with respect to the Flyer business. While the parties retained the 50-50 economic structure between Marvin and Flyer Technologies, the Limited Liability Company Agreement for Flyer Next designated Oded as Manager and gave him “the sole power to manage the business, property, and affairs of Flyer Next and its wholly owned subsidiary, Flyer Defense.” Flyer Technologies also agreed to give Marvin an \$18 million “priority return” over Flyer Technologies upon the occurrence of “specified liquidity events.”

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May 17, 2023, Plaintiffs Flyer Defense, Flyer Next, and Flyer Technologies filed a Second Amended Complaint against Defendants Marvin and its President and Chief Operating Officer, David Gussman, as well as its Chief Executive Officer, Howard Gussman. Following voluntary dismissal of certain claims, the remaining causes of action are for declaratory relief, breach of the Contribution and Assignment Agreement, breach of the Services Agreement, breach of the Line of Credit Agreement, fraudulent misrepresentation, trespass to chattels, conversion, and unauthorized access to computers. Plaintiffs allege that while negotiating the 2018 restructuring, Flyer Technologies relied on Marvin’s misrepresentations of material facts in providing it 50% ownership of Flyer Next and a priority return of \$18 million if Flyer Next is ever sold for \$100 million or more. Plaintiffs further allege breaches of different agreements and a controversy as to distributions.

On

May 24, 2023, the Court consolidated the case with related Case No. 22STCV30079, with the instant case as the lead case.

RULING: Granted.

Flyer

Next, Oded Nechushtan, and Amit Nechushtan (Flyer Parties) move for an order excluding any evidence or argument that Flyer Next breached the LLC Agreement by not providing access to books and records and requesting injunctive relief. The Flyer Parties argue that Marvin's complaint (filed in the related case) does not include any claim based on this theory nor a request for injunctive relief. They also argue that the books and records claim is subject to arbitration. Marvin opposes the motion, contending that the evidence is relevant to its breach of fiduciary duty claim and its request for punitive damages. The Flyer Parties' motion is granted.

Marvin

is precluded from introducing evidence or argument regarding Flyer Next's alleged failure to provide it access to books and records for the purposes of showing a breach of the LLC Agreement and entitlement to injunctive relief on this basis. Neither of these issues are raised in Marvin's complaint. "One of the functions of pleadings is to limit the issues and narrow the proofs." (Fuentes v. Tucker (1947) 31 Cal.2d 1, 4.) "Evidence which is not pertinent to the issues raised by the pleadings is immaterial, and it is error to allow the introduction of such evidence." (Id. at p. 4.) Marvin's complaint bases its claim for breach of the LLC Agreement on Flyer Next and Oded's failure to pay royalty proceeds, not on a lack of access to books and records. [Compl. ¶¶ 57-62.] The complaint also does not request injunctive relief to require Flyer Next to provide access to books and records nor is there any indication that the Flyer Parties were put on notice of Marvin's intention to seek such a remedy until their meet and confer efforts. (North Coast Village Condominium Assn. v. Phillips (2023) 94 Cal.App.5th 866, 881.) The Flyer Parties' motion is therefore granted.

The

Court declines to use the instant motion as a vehicle to decide the merits of the pending motion to compel arbitration.

Moving

parties to give notice.